

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR APRIL 14, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW
BY THE JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

**IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.**

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. **MSP18-01809 RE ALFREDO & MARY FAVRO TRUST**
9:00 AM HEARING IN RE: OBJECTION TO TRUSTEES ACCOUNTS AND PETITION FOR REMOVAL OF TRUSTEE,
FOR APPOINTMENT OF A SUCCESSOR TRUSTEE, AND FOR ADDITIONAL REMEDIES FILED ON 7/3/2024
BY KELSEY GRIECO

Need:

1. Appearances
2. Proposed Order

Note: Respondent's Objection filed by Mary Favro 2-18-2025.

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2. **MSP21-01326 ESTATE OF ROBERT LAVERGNE**
9:00 AM HEARING IN RE: FOR FINAL DISTRIBUTION FILED BY BRITNE C LAMBERT ON 3/17/2025

Petitioner, daughter, still must do the following:

1. Appear at the hearing
2. File a verified declaration to include evidence of payment of filing fee
3. File a verified declaration to clarify whether 2020 taxes have been paid. ¶ 11 indicates taxes have not been paid.
4. Verify petition under penalty of perjury. PrC § 1021. CCP § 2015.5. CRC 7.103
5. File a verified declaration to include exhibits, not attached as indicated
6. File a verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
7. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice, including Probate Referee Franza Giffen who requested special notice, and file a Proof of Service with court.
8. File Waivers of Accounting by all heirs or Accounting that complies with PrC § 1060 *et seq.*
9. File a verified declaration to include a list of assets on hand for distribution, and plan of distribution. LR 7.301
10. File a verified declaration to clarify request to hold a \$5,000.00 ¶ 21 indicates there is no cash on hand.
11. Submit a proposed Order

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3. **MSP21-01498** **IN RE: THE DAVID WREN JR. REVOCABLE TRUST**
9:00 AM HEARING IN RE: PETITION OF HELEN FEAGIN WREN FOR ENFORCEMENT OF SPOUSAL SUPPORT
JUDGMENT AGAINST DAVID WREN JR REVOCABLE TRUST OR IN THE ALTERNATIVE A BENEFICIARY OF
SAID TRUST FILED ON 11/17/25

Need:

1. Appearances
2. Verified Declaration to include Exhibit 1, which was referenced in the Petition but was not attached
3. Verified declaration by petitioner to list the names and addresses of all persons entitled to notice
4. Proof of mailing Notice of Hearing to all persons entitled to notice
5. Proposed Order

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4. 9:00 AM	P23-00902 MATTER OF: THE DAVIS FAMILY TRUST DATED APRIL 18, 1988 HEARING IN RE: PETITION TO COMPEL DISTRIBUTION OF TRUST ASSETS, REMOVAL OF DEBORAH DAVIS AS SUCCESSOR TRUSTEE, APPOINTMENT OF TEMP TRUSTEE FILED ON 05/16/23 BY GLEN DAVIS Need: 1. Appearances to report status of settlement 2. Proposed Order
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5. 9:00 AM	P23-01804 ESTATE OF: PATRICA CANSON HEARING IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY STEVEN A SMITH ON 11/18/25 --see also line # 6, line # 7, and line #9-- Need: 1. Appearances 2. Proposed Order Notes: a. Motion to Dismiss for Lack of Standing filed 01/02/26 by Steven A Smith, set 05/19/26 b. Petition for Probate of will filed 10/10/23 by Steven Smith set 06/18/26 c. Motion to Consolidate Coordinated Probate matters P23-01804, P23-01818, P24-00346, and P24-02188 filed 02/17/26 by Donald Iwuchukwu, set 06/23/26 d. Motion for Summary Judgement filed 02/20/26 by Steven A Smith, set 06/23/26
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6. 9:00 AM	P23-01818 ESTATE OF: CLARENCE CANSON HEARING IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY STEVEN A SMITH ON 11/18/25 --see also line # 5, line # 7 and line #9-- Need: 1. Appearances 2. Proposed Order
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7. 9:00 AM	P24-00990 HEARING IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY STEVEN A SMITH ON 11/18/25 Need: 1. Appearances 2. Proposed Order Notes: a. Petition for Order Confirming Trust and Trust Assets filed 06/07/24 by Steven Smith, set 06/18/26	MATTER OF: PATRICIA BYRD CANSON LIVING TRUST, DATED AUGUST 13, 2023 --see also lines # 5, line # 6, and line # 9--
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8. 9:00 AM	P24-02153 ESTATE OF: GABRIEL HEYWARD HEARING IN RE: FIRST AND FINAL ACCOUNT FILED BY DONNYA S HEYWARD ON 06/27/2025 Need: 1. Verified declaration by petitioner to specify whether all charges for <u>legal advertising</u> , <u>probate referee's services</u> and costs of administration have been paid. LR 7.317 Notes: a. If granted, court will set a review hearing for establishment of blocked accounts for each minor.
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9.	P24-02188	MATTER OF: CALIFORNIA REVOCABLE LIVING TRUST OF PATRICIA BYRD CANSON, DATED FEBRUARY 28, 2017
9:00 AM	HEARING IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS FILED ON 12/24/25 BY STEVEN SMITH --see also line # 5, lin3 # 6, and line # 7--	
Need:		
1. Appearances 2. Verified declaration to list names and addresses of all persons entitled to notice 3. Proof of mailing to anyone added by verified declaration not already served		
Notes:		
a. Motion to be Relieved as Counsel for Steven A. Smith filed on 11/18/25 by Matthew B Talbot, set 04/16/26 b. Petition to Determine Non-Existence of Trust, Termination, Compel Accounting, Compel Production of Information and Documents, Remove Trustee, and Fees filed 12/31/25 by Sheila Webb, set 05/19/26 c. Petition for Order Determining Existence of Trust and for Order Determining Title to Property filed 12/12/24 by Donal Iwuchukwu, set 06/18/26 d. Motion to Compel Completion of Deposition filed 03/23/26 by Steven A Smith, set 07/21/26		

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10A. **P25-00528** **MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017**
9:00 AM HEARING IN RE: PETITION FOR REMOVAL OF TRUSTEE AND APPOINTMENT OF SUCCESSOR TRUSTEE
FILED BY ROBERT LANG ON 08/21/2025 *** CONTINUED PER STIPULATION

Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

Notes:

- a. Objection filed 01/13/26 by Kathleen Schoening

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10B. 9:00 AM	P25-00528 HEARING IN RE: PETITION FOR INSTRUCTIONS; TO TRUSTEE TO SELL TRUST OWNED REAL PROPERTY, TO MAKE DISTRIBUTIONS, RETAIN RESERVE, BRESLIN ORDER THAT ALL BENEFICIARIES ATTEND MEDIATION FILED ON 03/25/25 BY KATHLEEN SCHOENING *** CONTINUED PER STIPULATION	MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017
	Need:	
	1. Appearances	
	2. Proposed Order	
	Notes:	
	a. Objection filed 01/14/26 by Robert Laing	

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10C. **P25-00528** **MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017**
9:00 AM HEARING IN RE: TRUSTEE, KATHLEEN SCHOENING'S FIRST AMENDMENT TO PETITION FOR
INSTRUCTIONS: FILED ON 12/02/2025 *** CONTINUED PER STIPULATION

-- See Line # 10B --

Need appearances

Notes:

- a. Objection filed 01/14/26 by Robert Laing

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10D. 9:00 AM	P25-00528 HEARING IN RE: PETITIONER AND TRUSTEE, KATHLEEN SCHOENING'S MOTION TO QUASH FILED 10/03/2025	MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017
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Need:

1. Appearances

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14.

9:00 AM

P25-00735 ESTATE OF STEPHEN L. JESSE

HEARING IN RE: PETITION FOR PROBATE OF WILL & FOR LETTERS TESTAMENTARY FILED ON 4-28-25
BY CATHY JESSE

Petitioner, sister, still must do the following:

1. Appear at the hearing
2. File Proof of Publication. PrC § 8120
3. File verified declaration by petitioner to address petition Item # 5.a.(3) or 5.a.(4) (whether decedent is survived by a registered domestic partner)
4. File a verified declaration to include names and dates of death of decedent's parents. LR 7.151(d)
5. File a verified declaration to clarify whether decedent had any predeceased siblings or issue of a predeceased sibling. PrC § 8002
6. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)

Notes:

- a. Caption indicates this is a Petition for Probate; however, Item # 3.f. states decedent died intestate. Petition does not request admission of a will. If granted, petitioner will be appointed as Administrator.
- b. Petition requests bond be fixed at \$150,000.00.

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15. 9:00 AM	P25-00775 ESTATE OF: BETTY CHEN HEARING IN RE: FIRST AND FINAL ACCOUNT AND REPORT OF ADMINISTRATOR FILED BY KATHERINE CHEN THORNE ON 11/14/25
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Need:

1. Creditor Claims fully listed in Petition including date filed. PrC § 10900; CRC § 7.403

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16A.	P25-02050	MATTER OF: WAYNE L. STRICKLER REVOCABLE TRUST, AS AMENDED ON MAY 31, 2023
9:00 AM	HEARING IN RE: PETITION TO CONFIRM TRUSTEE'S POWER TO USE TRUST FUNDS TO DEFEND TERMS OF TRUST FILED ON 11/14/25 BY CHRISTOPHER WILLIAMS	
Superseded by line 16B		

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16B. P25-02050 MATTER OF: WAYNE L. STRICKLER REVOCABLE TRUST, AS AMENDED ON MAY 31, 2023

9:00 AM HEARING IN RE: TRUSTEE, CHRISTOPHER WILLIAMSON'S FIRST AMENDED PETITION TO CONFIRM TRUSTEE'S POWER TO USE TRUST FUNDS TO DEFEND TERMS OF TRUST FILED ON 03/11/26

Need:

1. Appearances

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18. **P25-02064** **MATTER OF: MARGARET L SPESSARD REVOCABLE TRUST**
9:00 AM HEARING IN RE: PETITION TO ENFORCE SETTLEMENT AGREEMENT, DETERMINE BREACH, COMPEL ACCOUNTING, ORDER TURNOVER OF ASSETS, AND SURCHARGE FOR DAMAGES FILED BY RYAN SMITH ON 11/17/2025

Petitioner still must do the following:

1. Appear at the hearing
2. File a verified declaration to include a copy of all trust documents
3. File a verified declaration to include a copy of Settlement Agreement
4. File a verified declaration to include a list of names and addresses of all persons entitled to notice
5. Have a copy of the Petition and Notice of Hearing mailed to all persons entitled to notice and file the completed Notice of Hearing
6. Submit a Proposed Order

Notes:

- a. Motion to Compel Accounting filed 01/22/26 by Ryan Smith, set 06/02/2026

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19. **P25-02073** **MATTER OF: THE DEANNA LYNN NIXON LIVING TRUST DATED AUGUST 2, 2016**
9:00 AM HEARING IN RE: PETITION FOR FINANCIAL DEPENDENT ABUSE; INSTRUCTION TO CONSERVATOR RE
TRANSFER; COMPEL RETURN OF TRUST PROPERTY; DOUBLE DAMAGES AND FEES

Need:

1. Appearances
2. Proof of service of the Notice of Hearing on Petition to Determine Claim to Property, form DE-115. in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

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20.	P26-00423	MATTER OF: WONG FAMILY TRUST UNDER DECLARATION OF TRUST DATED 7-6-17
9:00 AM	HEARING IN RE: PETITION FOR ORDER TO CONFIRM TRUST ASSETS (PROB CODE 17200.1) FILED BY MARGARET WONG ON3-6-26	
	Need appearances	